

2017 C L C 561

[Lahore]

Before Ayesha A. Malik and Jawad Hassan, JJ

NABEEL AKHTAR CHAUDHRY and others----Appellants

Versus

LAHORE DEVELOPMENT AUTHORITY and 5 others----Respondents

Intra Court Appeal No.1155 of 2016, decided on 2nd February, 2017.

Law Reforms Ordinance (XII of 1972)---

---S. 3---Constitution of Pakistan, Art. 199---Intra Court appeal---Constitutional petition---Appellant impugned order whereby appellant's Constitutional petition was disposed of, with direction to the competent authority to consider and decide application of appellant within a period of eight weeks---Contention of appellant, inter alia, was that impugned order was passed summarily without considering legal and factual points of the matter---Validity---Perusal of impugned order revealed that direction to decide application of appellant / petitioner within a period of eight weeks was passed in accordance with law and appellant had been granted an opportunity of hearing as well---No reason existed to interfere in the impugned order---Intra-court appeal was dismissed, in circumstances.

Amir Mahmood for Appellants.

Waqar A. Sheikh and Mian Aman Ullah Khan for Respondents.

Date of Decision: 2nd February, 2017.

JUDGMENT

JAWAD HASSAN, J.--- Through this appeal, the Appellants/ Petitioners have called in question the order dated 09.06.2016 rendered in W.P. No.20044/2016 passed by the learned Single Judge (the "Impugned Order"), whereby the Constitutional Petition of the Appellants /Petitioners was disposed of with direction to the Respondent No.6 to decide application of the Petitioner (Annexure-I), pending before him, if any within eight weeks from the receipt of certified copy of this order. Further the office is directed to transmit a copy of this order along with all annexures to Director General, LDA, Lahore (Respondent No.1) who shall look into the grievance of the Petitioner regarding non-development of West Wood Society, situated at Thokar Niaz Baig, Lahore by respondents Nos.3 and 4 who shall decide the matter by himself or by someone else, competent in the matter within eight weeks from the receipt of certified copy of this order after hearing all the stake-holders including the present Petitioner.

2. Learned counsel for the Appellants submitted that the learned Single Judge has summarily disposed of the writ petition without considering the factual as well as legal points raised by the Appellants, as such the same is liable to be set aside; that the learned Single Judge has failed to take into account the fact that the residents/owners of the plots were duly entitled to receive the amount of compensation as the land of the Society actually belonged to the residents; that the Respondents have already failed to redress the grievance of the Appellants, therefore, referring the matter to the said Respondents is nothing but to end in smoke.

3. Learned counsel for the Respondents vehemently contested the arguments advanced by the learned counsel for the Appellants and have prayed for the dismissal of the instant appeal on the grounds that there is no illegality or perversity in the impugned order which has been passed by the learned Single Judge in accordance with law; that specification directions have been issued vide the impugned order to the concerned Respondents who are bound to abide by the said directions and will comply with the same.

4. We have heard the arguments of both the sides and have perused the record.

5. From the perusal of impugned order it reveals that when the matter pertaining to compensation was pending before the Respondent No.6 the learned Single Judge has rightly passed directions to the Respondent No.6 to decide application of the Petitioner (Annexure-I), pending before him, if any within eight weeks from the receipt of certified copy of this order. Similarly, regarding the issue of development in the society the impugned order reflects that the Respondent No.1 was directed to look into the grievance of the Petitioner regarding non-development of West Wood Society, situated at Thokar Niaz Baig, Lahore by Respondents Nos.3 and 4 who shall decide the matter by himself or by someone else, competent in the matter within eight weeks from the receipt of certified copy of this order after hearing all the stakeholders including the present Petitioner.

6. In view of above, we fully agree with the findings of the learned Single Judge and see no reason or justification to interfere in the impugned order as the same has been passed in accordance with law. Furthermore, an opportunity of hearing was also granted to the Appellants including the stake-holders in the impugned order to agitate their grievances before the abovementioned Respondents.

7. Hence, the instant Intra Court Appeal being devoid of any merit is hereby dismissed.